



CHAPTER xix.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Public Health Act 1875 relating to Kingston-upon-Hull.

[31st July 1947.]

WHEREAS the Right Honourable James Chuter Ede one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule hereunto annexed is hereby confirmed.

Order in
schedule
confirmed.

2. This Act may be cited as the Kingston-upon-Hull Provisional Order Confirmation Act 1947.

Short title.

SCHEDULE.

CITY AND COUNTY OF KINGSTON-UPON-HULL.

Provisional Order made by the Secretary of State under the Kingston-upon-Hull Corporation Act 1907.

To the Lord Mayor Aldermen and Citizens of the City and County of Kingston-upon-Hull :

And to all others whom it may concern.

WHEREAS the unrepealed provisions of the Kingston-upon-Hull Corporation Act 1907 (hereinafter referred to as "the local Act of 1907") as altered by the Kingston-upon-Hull Corporation Act Provisional Order 1912 which was duly confirmed by the Kingston-upon-Hull Corporation Act Provisional Order Confirmation Act 1912 and by section 29 of the Kingston-upon-Hull Corporation Act 1922 (hereinafter referred to as "the local Act of 1922") and by the Kingston-upon-Hull Order 1927 which was duly confirmed by the Bolton and Kingston-upon-Hull Provisional Orders Confirmation Act 1927 and by the Kingston-upon-Hull Order 1937 which was duly confirmed by the Kingston-upon-Hull Provisional Order Confirmation Act 1937 are in force in the City and County of Kingston-upon-Hull (hereinafter referred to as "the City") and the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority within the City for the purposes of the local Act of 1907 :

And whereas by section 4 of the local Act of 1907 provision is made for the imposition of a penalty for keeping obscene pictures etc. for sale :

And where by virtue of subsection (5) of section 4 of the local Act of 1907 and of section 29 of the local Act of 1922 and of the Kingston-upon-Hull Order 1937 as confirmed by the Kingston-upon-Hull Provisional Order Confirmation Act 1937 the provisions of section 4 of the local Act of 1907 are limited to expire on the thirty-first day of December one thousand nine hundred and forty-seven unless they shall have been continued by Act of Parliament or by Provisional Order made by the Secretary of State and confirmed by Parliament which Order the Secretary of State is thereby empowered to make in accordance with the provisions of the Public Health Act 1875 relating to Provisional Orders amending local Acts and in the application of those provisions to the purposes of that section the Secretary of State shall be substituted for the Local Government Board or the Minister of Health :

And whereas the Corporation have applied to the Secretary of State for the issue of a Provisional Order to continue in force the provisions of section 4 of the local Act of 1907 for a further period :

Now therefore I the Right Honourable James Chuter Ede one of His Majesty's Principal Secretaries of State in pursuance of the powers given to me by sections 297 and 303 of the Public Health Act 1875 as applied by subsection (5) of section 4 of the local Act of 1907 and

of all other powers enabling me in that behalf hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect namely :—

Article 1. Notwithstanding anything contained in section 4 of the local Act of 1907 the provisions of that section shall continue to be in force in the City until the thirty-first day of December one thousand nine hundred and fifty-seven.

Extension of
time for
operation of
section 4 of
local Act of
1907.

Article 2. This Order may be cited as the Kingston-upon-Hull Order 1947.

Given under my hand this twenty-sixth day of March one thousand nine hundred and forty-seven.

(Sgd.) J. CHUTER EDE.

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Ch. xix.

Kingston-upon-Hull Provisional 10.& 11 Geo. 6.
Order Confirmation Act, 1947.

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